Court File No. T-2423-24

FEDERAL COURT

BETWEEN:

THE CONSTRUCTION SPECIFICATIONS INSTITUTE, INC.

Plaintiff

-and-

BIBLIOTECH INC., JUSTE FANOU, TEMISAN FANOU and JMF TECHNICAL DOCUMENTATION SOLUTIONS INC.

Defendants

STATEMENT OF DEFENCE AND COUNTERCLAIM

DEFENCE

1. The Defendants deny, or otherwise have no knowledge of, each and every allegation contained in the Further Amended Fresh As Amended Statement of Claim dated July 17, 2026 (the "Claim") and put the Plaintiff to the strict proof thereof, except as expressly admitted herein. Except as may be indicated otherwise, the Defendants have adopted the definitions contained in the Claim.

2. The Defendants admit the following allegations in the Claim:

   a. the allegations in paragraphs 3, 4, 5 and 6; and

   b. the allegations in paragraph 23.

3. The Defendants specifically deny that the Plaintiff is entitled to any of the relief sought in paragraph 1 of the Claim and that the Defendants, or any of them, have copied any subject matter in which the Plaintiff owns copyright or used, as a trademark, any trademarks owned by the Plaintiff.

4. The Defendants specifically deny that either of the individual Defendants is personally liable for the actions of the corporate Defendants or is otherwise properly named as a defendant. The individual Defendants have at all times acted solely in their capacity as officers and directors of the corporations that employ them and in the best interests of those corporations.

The Defendants' use of the Masterformat and Uniformat classification systems

5. Bibliotech Inc. ("Bibliotech") operates an online research and education platform for professionals in the construction industry, including architects, designers, contractors and engineers. The Bibliotech platform offers a comprehensive database of companies and their products together with educational seminars describing the products.

6. Bibliotech organizes its database of companies and products by reference to the internationally recognized, industry standard classification systems known as Masterformat and Uniformat. These systems employ alphanumeric codes that are considered to be the gold standard for communicating and classifying construction specifications, materials and other building elements.

7. JMF Technical Documentation Solutions Inc. ("JMF") is engaged in the business of preparing construction specification documents for some of the world's largest architecture and interior design firms and government agencies. The Masterformat and Uniformat classification systems are necessarily part of the language in which JMF and its clients communicate with one another.

8. The Masterformat and Uniformat classification systems serve different but complementary roles in construction projects. The Masterformat system organizes buildings and activities by construction materials, trade scopes, or work results while the Uniformat system organizes buildings by systems and assemblies.

9. The Masterformat and Uniformat classification systems have been taught in architecture, engineering, cost estimating, construction management, and design programs for many years.

10. Most government building contracts require the use of Masterformat specifications.

11. Knowledge of the Masterformat classification system is essential to operate in the construction industry.

12. Public Services and Procurement Canada requires any architect, engineer or consultant engaged to work on federal projects to use the National Master Specification (NMS) to develop their specifications. Defense Canada, the RCMP, and many other federal agencies have similar stipulations. The NMS is structured around the Masterformat and Uniformat classification systems.

13. The Masterformat classification system was first developed by the Plaintiff or its predecessors in the 1960s and 1970s, with the assistance of volunteers, at a time when the construction industry was overwhelmed by the variety and inconsistency of specification organization between companies, projects and individual members.

14. The Uniformat classification system was developed jointly by the U.S. General Services Administration and the American Institute of Architects in the 1970s. In or around 1995, the Plaintiff created a modified version of the Uniformat system and started to publish updates. Another organization still publishes the original Uniformat system under the title “ASTM E1557 - Standard Classification for Building Elements and Related Sitework —UNIFORMAT II”.

15. Both the Masterformat and Uniformat systems were developed for the public good and for the benefit of the construction industry as a whole to enable architects, engineers, contractors and project owners to speak the same organizational language.

16. The concept of grouping the built environment into work sections organized by trades dates back to at least 1860. The concept of grouping the built environment into elements organized by systems dates back to the early 1950s. Neither of these organizational principles is original to the Plaintiff.

17. To promote the universal adoption of the Masterformat system, the Plaintiff, for many years and until very recently, made all of the Masterformat codes freely accessible on its website via an abridged PDF document called "MasterFormat Numbers & Titles" which was around 170 to 180 pages. Firms wishing to obtain the full publication that included additional chapters, long-form explanations and a keyword index could purchase a physical book or a static PDF that included updated codes once every few years for a small fee. Until recently, the Masterformat codes were freely used in industry communications and specifications without any objection from the Plaintiff or anyone else on copyright grounds.

The Plaintiff's failed efforts to claim copyright in the Masterformat system

18. The Plaintiff is a not-for-profit professional association that is an owner of a for-profit subsidiary called the Construction Information Network, LLC ("CIN"). CIN is in the business of selling licenses to use the Masterformat and Uniformat classification systems for profit.

19. In or around 2020, the Plaintiff and CIN launched a software platform called "Crosswalk" to digitize access to the Masterformat and Uniformat systems and to begin selling access to these classification systems to software providers for substantial fees.

20. In October 2023, the Plaintiff, through its external legal counsel in the U.S., wrote to Bibliotech alleging that Bibliotech was using the CSI and MASTERFORMAT trademarks and "the copyrighted works *Masterformat* and other related works" without permission and demanding that Bibliotech cease doing so or agree to pay for a license to use these so-called "CSI Properties".

21. Around the same time, the Plaintiff initiated proceedings against Bibliotech and the individual Defendants in the Federal Court of Canada and against a similar business in the United States, called Zerodocs, for infringing CSI's alleged copyright in the Masterformat system.

22. In November 2025, the Federal Court of Canada struck out the Plaintiff's statement of claim in this action in its entirety (with leave to amend) on the basis that, among other things, it asserted copyright in a system and a system is not a work which can be subject to copyright.

23. In February 2026, despite ongoing challenges to its legal theories, the Plaintiff rebranded "Crosswalk" as "The Construction Standard" (TCS) and launched a new website. On this website, the Plaintiff asserted that all organizations in the construction industry, including architects, engineers, general contractors, specifiers, owners, facility managers, building product manufacturers, and software platforms, that used Masterformat or Uniformat in their workflows were required to purchase a license.

24. The rollout of the TCS website has faced significant backlash within the construction industry. Among other things, the Plaintiff now requires firms to disclose their earnings so the Plaintiff can determine the applicable licensing fee.

25. On September 1, 2026, a U.S. District Court granted summary judgment against the Plaintiff on all claims in its action against Zerodocs on the basis that the numbers, titles, divisions, and the taxonomy of the Masterformat system are not protected by copyright.

The Plaintiff's current copyright claims

26. Notwithstanding its failed efforts to date to claim copyright in the Masterformat system and to extract licensing fees from firms who used it, the Plaintiff continues to pursue Bibliotech for "unauthorized use" of the "CSI Properties". In this action, the Plaintiff has pivoted from claiming copyright infringement in the Masterformat system itself (after having its original claim struck out) to now claiming that

Bibliotech has infringed the Plaintiff's alleged copyright in the 600+ page document appended to the Claim as Schedule "A". This is the same document that the Plaintiff previously alleged merely "described" the Masterformat system.

27. None of the Defendants has ever copied the 600+ page document or any substantial part of it except to the extent that the corporate Defendants have referenced the alphanumeric codes that comprise the Masterformat system (and in which no copyright subsists) in the course of providing their services.

28. None of the Defendants has ever copied the Uniformat Work appended to the Claim as Schedule "B" except to the extent that the corporate Defendants have referenced the alphanumeric codes that comprise the Uniformat system (and in which no copyright subsists) in the course of providing their services.

29. The alphanumeric codes that comprise the Masterformat and Uniformat systems are expressions of categories that merge with the ideas of the categories where there is nothing creative about how the expressions correspond with the ideas.

Copyright in the systems (if any) was never assigned to the Plaintiff

30. If copyright subsists in any subject matter relating to the Masterformat or Uniformat systems that the Defendants have used, which is denied, then the Plaintiff is not the owner of that copyright.

31. The Masterformat and Uniformat systems were created by third parties, including the individual volunteers listed under paragraphs 38 and 39 of the Claim, the U.S. General Services Administration, the American Institute of Architects, Construction Specifications Canada, and the Royal Architectural Institute of Canada.

32. The Plaintiff has, for many years, relied on free expert contributions and third-party submissions from the construction industry to enrich and update Masterformat and Uniformat. The Plaintiff actively solicits these proposals from the general public through an online portal.

33. Not all of these third parties, if any, have assigned any copyright in their work to the Plaintiff.

34. To the extent that copyright in any subject matter relating to the Masterformat or Uniformat systems is owned by third parties, the Defendants deny that the Plaintiff has any standing to assert any rights on its own behalf or on behalf of those parties in this proceeding.

Fair dealing

35. If copyright subsists in any subject matter relating to the Masterformat or Uniformat systems that the corporate Defendants have used, which is denied, then the corporate Defendants' activities in respect of that subject matter constitutes fair dealing, including for the purpose of research and private study in accordance with section 29 of the *Copyright Act*.

36. The corporate Defendants' services are directed to facilitating access to information which constitutes research and private study in accordance with section 29 of the *Copyright Act*.

37. The corporate Defendants' activities are fair in that they are reasonably necessary to provide their customers with access to the information that their customers require.

38. The corporate Defendants' activities do not have any adverse effect on the Plaintiff's business other than depriving the Plaintiff of an opportunity to assert rights that it does not have.

Copyright misuse

39. Through this action, the Plaintiff has attempted to assert copyright in a manner that violates the public policy embedded in Canadian copyright law. The Plaintiff has misused copyright in an effort to secure an exclusive right or monopoly not granted by the *Copyright Act*.

No trademark infringement

40. The Defendants deny that any of them has ever used, as a trademark, any trademarks owned by the Plaintiff.

41. To the extent that the corporate Defendants display, or have displayed, the MASTERFORMAT, UNIFORMAT and CSI trademarks, they have done so solely for the purposes of identifying the Plaintiff and the corresponding industry standard classification systems in an honest manner that does not given rise to any confusion in the marketplace.

42. The same U.S. District Court that summarily dismissed all of the Plaintiff's copyright claims against Zerodocs also summarily dismissed the Plaintiff's trademark infringement claims against Zerodocs which are, in essence, the same claims that the Plaintiff is now making against the Defendants.

COUNTERCLAIM

43. The Defendants claim:

a. a declaration that copyright does not subsist in the Masterformat or Uniformat classification systems;

b. a declaration that the Defendants have infringed no rights of the Plaintiff;

c. a declaration that the Claim is an abuse of process;

d. a declaration that the Plaintiff has engaged in copyright misuse; and

e. their costs on an elevated scale.

44. The Defendants repeat and rely on the allegations in the Defence herein.

Date: September 11, 2026



SHIFT LAW PROFESSIONAL CORPORATION
60 St. Clair Avenue East, Suite 300
Toronto, Ontario M4T 1N5

John H. Simpson
jsimpson@shiftlaw.ca

Tel: 647.361.7533

Solicitors for the defendants/plaintiffs by counterclaim,